

EMPLOYMENT AGREEMENT

This Employment Agreement ('Agreement') is entered into as of January 1, 2025 ('Effective Date') by and between Acme Corporation, a Delaware corporation ('Employer'), and Jane Doe ('Employee').

RECITALS

WHEREAS, Employer desires to employ Employee, and Employee desires to accept such employment, on the terms and conditions set forth herein.

1. Position and Duties

1.1 Position. Employee shall serve as Senior Software Engineer. Employee shall report to the Chief Technology Officer.

1.2 Duties. Employee shall perform all duties customarily associated with the position and such other duties as may be assigned from time to time. Employee shall devote full business time and effort exclusively to Employer's business.

2. Compensation and Benefits

2.1 Base Salary. Employer shall pay Employee a base salary of \$120,000 per year, payable in bi-weekly installments of \$4,615.38, subject to applicable tax withholdings.

2.2 Bonus. Employee is eligible for an annual performance bonus of up to 15% of base salary, determined at Employer's sole discretion.

2.3 Benefits. Employee shall be entitled to participate in health, dental, and vision insurance plans maintained by Employer for its employees. Employer shall contribute \$500 per month toward Employee's health insurance premium.

2.4 Equity. Employee shall receive stock options for 10,000 shares vesting over four years with a one-year cliff.

3. Term and Termination

3.1 Term. This Agreement commences on the Effective Date and continues until terminated in accordance with this Section 3.

3.2 Termination Without Cause. Employer may terminate this Agreement at any time without cause upon thirty (30) days prior written notice to Employee. In such event, Employer shall pay Employee a severance equal to three (3) months of base salary.

3.3 Termination for Cause. Employer may terminate this Agreement immediately for Cause. 'Cause' means: (a) material breach of this Agreement; (b) gross negligence or willful misconduct; (c) conviction of a felony; or (d) repeated failure to perform duties after written warning.

3.4 Resignation. Employee may resign upon thirty (30) days written notice. No severance is owed upon resignation.

4. Confidentiality and Intellectual Property

4.1 Confidential Information. Employee shall not, during or after employment, disclose any Confidential Information to any third party without prior written consent of Employer. 'Confidential Information' includes trade secrets, customer lists, source code, financial data, and business strategies.

4.2 Work Product. All work product, inventions, and improvements created by Employee in the scope of employment shall be the exclusive property of Employer. Employee hereby irrevocably assigns all such rights to Employer.

4.3 Survival. Obligations under Section 4 survive termination of this Agreement for a period of five (5) years.

5. Non-Compete and Non-Solicitation

5.1 Non-Compete. For a period of twelve (12) months following termination, Employee shall not, directly or indirectly, engage in any business that competes with Employer within a fifty (50) mile radius of any Employer office.

5.2 Non-Solicitation. For a period of twenty-four (24) months following termination, Employee shall not solicit or hire any current or former employee of Employer, nor solicit any customer of Employer.

5.3 Remedies. Employee acknowledges that breach of this Section will cause irreparable harm and that Employer shall be entitled to injunctive relief in addition to all other remedies at law or equity.

6. Dispute Resolution and Governing Law

6.1 Arbitration. Any dispute arising from this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules. The arbitration shall take place in San Francisco, California. The arbitrator's decision shall be final and enforceable in any court of competent jurisdiction.

6.2 Class Action Waiver. Employee waives any right to participate in any class action or collective proceeding against Employer.

6.3 Governing Law. This Agreement shall be governed by the laws of the State of California, without regard to conflict of law principles.

7. General Provisions

7.1 Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements relating to the subject matter hereof.

7.2 Amendment. This Agreement may not be modified except by a written instrument signed by both parties.

7.3 Severability. If any provision of this Agreement is held unenforceable, the remaining provisions shall continue in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

Acme Corporation: _____ Date: _____

Employee (Jane Doe): _____ Date: _____